MARIA MANDIZHA
versus
CHAMUNORWA MAZURU N.O
and
MASTER OF THE HIGH COURT
and
LEAH MARIA GANYAU

HIGH COURT OF ZIMBABWE
CHIRAWU-MUGOMBA J
Harare: 18 December 2025, 15, 19 and 20 January 2026.

P. Mahembe, for the applicant

UNOPPOSED COURT APPLICATION

CHIRAWU-MUGOMBA J: This matter was placed before me as an unopposed court application for the setting aside of the direction given by the second respondent in terms of the provisions of s52(9) (i) of the Administration of Estates Act [Chapter *6:01*]. This direction is specifically the confirmation of the final liquidation and distribution account in the estate of the late Lovemore Farayi Mandizha (the deceased) under DR 630/12.

The applicant makes the following averments. In 1986 she and the deceased married under customary law. However, unbeknown to her at that time, the deceased was also customarily married to the third respondent. When she leant of this, she did not take issue because she and the third respondent did not stay together. She persuaded the deceased to register with the City of Harare for purposes of acquiring an immovable property. The deceased was subsequently offered stand 7357 Budiriro 4 by the City of Harare. The purchase was financed through borrowings from relatives and bank guarantees as they were both employed. The applicant contributed to the construction of the cottage on the property by giving the deceased funds directly. The property though was registered in the name of the deceased since he was head of the household. The deceased did not construct the

cottage at all and this became apparent when the family had to move from rented accommodation to the stand. They had to temporarily stay a shack. In 1996, the applicant was retrenched from employment and she utilised her package for the purpose of building a cottage on the stand.

In 1998, the applicant and the deceased entered into a civil marriage in terms of the then Marriages Act, [Chapter *5:11*]. This subsisted until the deceased's demise. The applicant avers that she worked hard to ensure that a house was constructed on the stand. She resided on the stand with the deceased and up to the time of litigation, she was still staying on the property. From the time the deceased passed away on the 5th of April 2012, the house has been constructed to a five roomed one, At the time of the deceased's death, the third respondent stayed in Seke rural area in a house constructed for her by the deceased. She has never set foot at the Budiriro house except once briefly. Fearing that the applicant would be dispossessed of the house by the deceased's relatives, she caused the registration of the deceased estate with the first respondent being appointed as the executor. It was agreed that the applicant and the third respondent would each retain the houses that they lived in and that the applicant would cede her rights to her son as heir of the house. Follow ups were made with the second respondent on the winding up but the process took a while since resources were not always permitting. In May 2025, applicant became aware that the first respondent had drawn up a final liquidation and distribution account and that the Budiriro house had been allocated to herself and the third respondent in equal shares. The Seke property was omitted from the estate account. The first respondent failed to notify the applicant that the estate account was lying for inspection. The applicant's agents raised with the second respondent queries to the estate account by way of a letter dated the 14th of May 2025 but no response was forthcoming. In August 2025, the applicant was informed by her legal practitioners that the objection had been taken into account by the Master and presumably dismissed. The gist of the response was that the second respondent had been guided by the provisions of s68(3) (4) of the Administration of Estates Act. As such, the second respondent was now *functus officio.* The second respondent made an error of law in confirming the distribution account in that s68F(2) (c) provides that if a deceased man is survived by two wives each living

separately, they should each get the house that they were living in or if that is not practical, a usufruct in addition to household good. This means that the applicant should have been awarded the Budiriro house and the third respondent the Seke property. There is no impracticality impeding the awarding of the houses as averred above. The applicant thus seeks an order as follows.

1. The application be and is hereby granted.
2. The direction of the Master of the High Court confirming the final liquidation and distribution account in DR 630/12 be and is hereby set aside.
3. Stand 7357 Budiriro 4, Harare be and is hereby awarded to the applicant as the sole beneficiary thereto.
4. No order as to costs

Accompanying the application is a supporting affidavit of Tinashe Mandizha who avers that he is a son of the applicant and the deceased. He confirms that the two were married and staying at the Budiriro house and that the third respondent was staying in Seke. The annexures reveal that the estate account was confirmed on the 25th of May 2025. The first respondent's response to the inquiry on the account is dated the 4th of August 2025. Although none of the respondents filed notices of opposition, the applicant filed heads of argument. These heads were basically outlining the law regarding award of houses at death. The act of confirming the account therefore is a direction from the Master.

It is also noted that the applicant on the 13th of November 2025 was condoned for late filing of an application to set aside the direction of the Master under DR 630/12.

The legal question that arises is whether or not a direction given by the Master in terms of s52 of the Administration of Estates Act can be set aside. The first port of call therefore is an examination of this section. It reads as follows,

Administration and distribution of accounts

> "(1) Every executor shall administer and distribute the estate in respect of which he is appointed according to law and the provisions of any valid will relating to that estate.

(2)As soon as may be after the expiration of the period notified in the *Gazette* in manner hereinbefore in this Act provided, and not later than six months from the day on which the letters of administration were issued to him, or within such further time as the Master may upon sufficient cause being shown allow, the executor shall frame and lodge with the Master an account showing the administration and distribution of the estate up to the date when the account was lodged, together with a true copy of that account.

(3) If any such account is not the final account it shall set forth all debts due to the estate and still outstanding and all property still unrealized, and the reasons why the same have not been collected or realized, as the case may be.

(4) The executor shall from time to time, as the Master may direct, render periodical accounts of his administration and distribution until the estate is finally liquidated.

(5)Every executor's account, except in such cases as the Master may rule otherwise, shall lie open for inspection—(a)at the office of the Master if the deceased resided or carried on his principal business within the area defined in the First Schedule; or(b)at the office of the Assistant Master if the deceased resided or carried on his principal business outside the area defined in the First Schedule; and if the deceased resided or carried on his principal business in any district other than the district of Harare or Bulawayo, a duplicate thereof shall lie open at the office of the magistrate for the district in which the deceased resided or carried on his principal business, for inspection for not less than three weeks by any person interested in the estate.

(6)The executor shall give due notice that the account is so open to inspection by advertisement in the *Gazette* and in a newspaper circulating in the district wherein the deceased resided or carried on his principal business, and shall state in that notice the period during which and the place at which the account will lie open for inspection.

(7)The magistrate shall cause to be affixed in some public place in or about his office a list of all such accounts as have been lodged in his office and the date on which each such account will be transmitted to the Master; and upon the expiry of the period allowed for inspection he shall endorse on each account his certificate that the account has lain open in his office for inspection in accordance with this section and shall transmit the account to the Master.

(8)Any person interested in the estate may at any time before the expiration of the period allowed for inspection lodge with the Master in writing any objection, with the reasons thereof, to that account.

(9)The Master shall consider such account, together with any objections that may have been duly lodged, and shall give such directions thereon as he may deem fit:

Provided that—

(i)any person aggrieved by any such direction of the Master may, within thirty days after the date of the Master's direction, and after giving notice to the executor and to any person affected by the direction, apply by motion to the High Court for an order to set aside the direction and the High Court may make such order as it may think fit;

(ii)when any such direction affects the interests of a person who has not lodged such an objection, the account so amended shall again lie open for inspection in the manner and with the notice aforesaid unless the person so affected consents in writing to the account being acted upon.

> (10)When an account has been open to inspection and no objection has been lodged, or if any objection has been lodged and has not been sustained or has been withdrawn, or the person objecting has not applied to the High Court within the time prescribed the executor shall proceed to pay out the creditors and heirs and shall lodge with the Master the vouchers in support of the account.
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> (11)Upon the final and complete liquidation of the estate to the satisfaction of the Master the executor shall then be entitled to obtain his discharge from the Master as such executor."

The application before the court is akin to one for re-opening of an estate. In *Vandira v Estate Late George William Noble & 2 others* HMA 10-23, the court stated that:

> "An application for the re-opening of an estate is not there for the asking; it can only succeed if there are special circumstances justifying such re-opening. The existence of acts of fraud or misrepresentation being examples of such special circumstances."

In, *Zvavandiita v Ndlovu & Ors* HB 82-16, the court held that the estate of the deceased could be reopened because the respondents had gone behind the back of other beneficiaries and registered the estate fraudulently, excluding them from the benefits.

In, *Muzungu & Ors v Muzungu & Ors* HH 172-15, Chitakunye J (as he then was), granted an application for the setting aside of an inheritance plan and a re-opening of a deceased estate at the instance of the applicant. The applicant was one of the deceased's surviving spouses in a polygamous setup, yet she had been excluded from the administration of the estate. In *Chirisa v Mugadzvawaneta & Others* HH 323-14, an estate was reopened because of an illegality that had occurred in the winding up of the estate. MWAYERA J (as she then was) held that,

> *"It would be an absurdity to seek to perpetuate an illegality under the umbrella of the need to finalise as quickly as possible the administration of an estate."*

I note that the letter by the applicant's agent to the Master dated the 14th of May 2025 alleges that the first respondent misled the second respondent. I however do

not read the application to suggest that a fraud was perpetrated. As held in *Stanbic Bank Zimbabwe Ltd v Duran* HH 54-07,

> "…in order to found a cause of action on claim premised on fraud it is essential that certain and specific allegation of fraud be pleaded."

The response by the second respondent makes it clear that he was guided by the law and nothing else. The first respondent did not in any way guide the second respondent. The applicant does not agree with the interpretation of the law by the Master as it relates to the awarding of deceased estate assets in a situation where a man is considered to having been married to two wives at the date of death. She wants her own interpretation to be substituted with that of the Master. She is not attributing any fraud to the respondents. All she is doing is to question the interpretation of the law. Her claim for the setting aside of the direction is not based on fraud in terms of which she would be expected to have put facts supporting fraud. There is no allegation of misrepresentation on the part of the first respondent. By her own admission, the applicant considers herself to have been in a polygamous relationship for purposes of inheritance by operation of the law. Her reasons for seeking the setting aside of the direction cannot therefore be sustained. The Master has power in terms of s52 (9) to take into account all objections and give directions. This is exactly what he did. The fact that the applicant does not agree with the interpretation cannot found a cause of action that can be set aside through an ordinary court application.

In my view, the decision by the Master in terms of s 52 (9) is challenged by way of review. See *Van Niekerk v Master of The High Court and Others* 1998 (1) ZLR 418 (H) as also upheld on appeal in *Van Niekerk v Van Niekerk and Others* 1999 (1) ZLR 421 (S). The application is one for review disguised as an ordinary court application.

In my view, the application is clearly misplaced and ought to be dismissed. Because no opposition has been filed, the most apt order for costs is that there should be none.

DISPOSITION

a. The application be and is hereby dismissed.

b. There will be no order as to costs.

Mahembe attorneys, applicant's legal practitioners